

OSGOODE HALL LAW SCHOOL

PUBLIC & CONSTITUTIONAL LAW
LAW 1800, 2026-27, Section B

Prof. Kate Glover Berger
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Class Time (Fall): Thursdays, 9:30 am to 12:30 pm
No class (Deemed Monday): Thursday, October 15, 2026
Make-up lecture: One recorded lecture, posted on eClass by Oct 16, 2026
Last class of the term: Thursday, October 29, 2026
Review class (Optional): Thursday, November 26, 2026, 10:30-12:30 pm

Class Time (Winter): Tuesdays & Thursdays, 10:30 am to 12:30 pm
Last class of the term: Thursday, March 18, 2027
Review class (Optional): Thursday, April 1, 2027, 10:30-12:30 pm

Location: Room 2001 (Fall & Winter) and/or Zoom, if advisable for public health, accommodation, and/or pedagogical reasons

Course Website: Available on [eClass](#).

Meetings: I am very happy to meet with you to discuss any aspect of the course, the law, law school, careers, and any other matter. I have both in-person and Zoom office hours available every week. **Please book meetings using the “Book Office Hours” link on our eClass site.**

In addition, I (try to!) arrive early to class and am happy to discuss your questions or any other matters before/after class or during the class breaks.

Dean’s Fellows:	Reem Salloum	reemsalloum@osgoode.yorku.ca
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Course Description

This course is a survey of the fundamentals of Canadian public and constitutional law. Our study aims to cover:

- the sources, features, structure, and institutions of the constitution and the principles, rules, tensions, and traditions at work in Canadian constitutional life;
- the roles, powers, and relationships of Parliament and the provincial legislatures, the executive branch, the judiciary, the administrative state, and Indigenous governments;
- how structures and institutions of government are recognized (or undermined), empowered (or marginalized), and constrained (or ignored) by public law and the constitution; and
- the nature and limits of constitutional rights, with particular emphasis on Aboriginal and treaty rights and the rights and freedoms guaranteed in the *Canadian Charter of Rights and Freedoms*.

This course aims to explore both the ideals and the realities of constitutional law. From the outset of this course and throughout, we will consider constitutionalism in relation to Indigenous legal traditions and institutions, and critically examine the meaning and impact of Canadian state-based constitutional law in relation to Indigenous Peoples and the pursuit of reconciliation between Indigenous Peoples and the Crown. In our study of all issues, we will aim to confront the social, political, and historical contexts within which constitutional law is situated, and question the ways in which constitutional law can – and should – respond to social issues.

Learning Objectives

This course aims to help students be able to:

1. Identify, discuss, and assess the structure of Canada's constitution;
2. Explain and assess the principles and institutional structures of the public order in Canada, with attention to the ways in which constitutional and public law both respond to and exacerbate social problems, including the ways in which public and constitutional law contribute to and undermine reconciliation between Indigenous Peoples and non-Indigenous people;
3. Identify, explain, and assess major doctrines of Canadian state constitutional law, with appreciation of aspects of their social, political, and legal contexts;
4. Identify and discuss certain foundational institutions and principles of administrative law;
5. Identify issues of public and constitutional law that arise in complex fact scenarios;
6. Construct analytical frameworks for analyzing those issues;

7. Use those frameworks to work through complex problems, appreciating and evaluating relevant competing arguments;
8. Identify and grapple with tensions within Canadian constitutionalism, and understand how these tensions manifest within public life;
9. Develop, communicate and assess ideas and arguments about constitutional and public law, policy, and reform; and
10. Develop skills of legal reasoning, constitutional interpretation, and careful reading of legal texts.

Course Materials

The required casebook for this course is **Asha Kaushul, Howard Kislowicz & Richard Moon, eds, *The Canadian Constitutional Law Open Access Casebook*, 2d ed (CanLII, 2025)**. It is free and available online through the CanLII website. It can also be downloaded and printed as a PDF file. On our eClass site, I have posted a link to the online version of the book, as well as: (1) a PDF version of the full book and (2) two PDFs of the specific parts we will cover (one for the Fall Term and one for the Winter).

This casebook has the benefits of being very up-to-date and being freely accessible. The possible downsides of this book are that it is fully online – hard copies are not available unless you print it yourself – and that, because it is a relatively new volume and a recent edition, there are strengths and weaknesses in the content that remain to be addressed. Thus, we might discover unexpected challenges with the book along the way. However, given the cost of law texts and the ever-changing nature of Constitutional Law these days, I believe the advantages outweigh the challenges right now. Certainly, if you face any challenges when accessing the book or with respect to its content, please do not hesitate to reach out and we will find a way forward. I'll note that there is a first edition of this book available on CanLII as well. Please do not rely on it. The book has been extensively updated; indeed, it has been essentially re-written. Relying on the first edition will not align with our coverage in class.

In addition to the casebook, the mandatory reading for this course will also include other freely available materials, all of which will be posted on eClass for the relevant class session.

IMPORTANT NOTE: The exam in this course is open-book, which means that you can rely on your materials, notes, and summaries while writing the exam. However, the exam is written under conditions that prevent you from accessing the internet, your hard drive, or any other material on any devices. Accordingly, **any materials that you wish to access and/or rely on during the exam must be printed in advance and brought with you to the exam room.**

Throughout the course, you will also need to read and consult the ***Constitution Act, 1867*, the *Constitution Act, 1982*, and other constitutional documents**. Links to these documents are posted on eClass or you can find them posted on the [Department of Justice website](#). There are commercial compilations of Canada's Constitution available. If you are interested in these versions, I am happy

to discuss the options. Keep in mind, as we will study in class, the Canadian constitution is not found in a single document or even in a closed collection of identifiable written documents. Rather, it encompasses an expansive and dynamic set of written, unwritten, formal and informal sources.

The schedule of our class sessions and the required materials for each class are set out in a separate document (“Class Schedule & Reading List”), which I will circulate in advance of our first class and post on our eClass website. While I don’t anticipate revision of that document, I will update it, if and as necessary, during the term. I will always endeavour to provide meaningful notice of changes to the Class Schedule & Reading List. An aspirational list of the topics covered in this course, in the order of coverage, is set out in Appendix A of this syllabus.

Our class website (on eClass) is arranged class-by-class. For each class, the required reading and other materials are listed. An outline for each class will also be posted on eClass as a Word document and a PDF in advance of each class, along with links to in-class exercises and any additional relevant materials. If there are ways in which the class website and/or materials could be better organized or more easily accessible, please don’t hesitate to share your experience and ideas with me. Your feedback is my most valuable resource when it comes to designing and improving this course.

Additional Resources

As we will study, public and constitutional law (like all areas of law) cannot be understood in isolation from history, politics, economics, the social conditions in which it operates, or the people it aims to govern. Public law and constitutional law are fundamentally about relationships between the state, on the one hand, and individuals and communities, on the other. These relationships are inherently complicated and multidimensional. Further, there are diverse and divergent perspectives on the constitution, public and constitutional law, and avenues for reform (again, as there are in all areas of law). As a result, there is a boundless body of jurisprudence, theory, commentary, and scholarship dealing with the issues we will study. In our course, I aim to incorporate a range of perspectives, views, and voices, but this course is inevitably an introduction to only a fraction of the material available. I am always happy to discuss additional sources and perspectives with you and to help you find supplemental material that is of interest to you.

By the time you start this course, you will have, at a minimum, encountered some of the fundamentals of public and constitutional law in the ZeroL materials. That material will be directly relevant for our course. But for many or most of you, this course will be your first time formally studying the Canadian constitution and the workings of government. Mindful of that, there are many foundational texts that you might find useful this year to complement and/or supplement the assigned materials. These additional resources should be one of your primary methods for trying to clarify an issue you find confusing or to answer questions that arise as you read the course materials. (Of course, asking questions in/before/after class or meeting with me, should also be on that list of methods. However, seeking and finding answers to your queries on your own, by

accessing primary and secondary materials, is the option that best supports your learning and thus should be pursued first).

A selection of helpful supplementary materials includes:

John Borrows, *Canada's Indigenous Constitution* (Toronto: University of Toronto Press, 2010) (in library: KF 8204.5 B567 2010; also available as an e-book through the York University library catalogue).

Nathalie Des Rosiers, Peter Oliver, & Patrick Macklem, eds, *The Oxford Handbook of the Canadian Constitution* (Oxford: Oxford University Press, 2017) (in library: KF 4482 O94 2017; also available as an e-book through the York University library catalogue).

Philip Bryden et al, *Public Law: cases, commentary, and analysis*, 5th ed (Toronto: Emond, 2025) (available as an e-book through the York University library catalogue).

Eugene A Forsey, *How Canadians Govern Themselves*, 10th ed (Ottawa: Minister of Public Works and Government Services Canada, 2020) (available online [here](#)).

Peter Hogg & Wade K Wright, *Constitutional Law of Canada*, 2024 Student Edition (Toronto: Carswell, 2024) (on reserve in library; also found at KF 4482 H64).

Carissima Mathen & Patrick Macklem, *Canadian Constitutional Law*, 6th ed (Toronto: Emond, 2022) (on reserve in library; also available as an e-book through the York University library catalogue)

Reports of the National Centre for Truth and Reconciliation (available online [here](#)).

"Special Issue: Rewriting Equality" (Decisions of the Women's Court of Canada), (2006) 18:1 Canadian Journal of Women & the Law 1ff (available online through Omni).

Jeremy Webber, *The Constitution of Canada: A Contextual Analysis*, 2d ed (Oxford: Hart Publishing, 2021).

If you would like to access supplementary materials but are not sure which ones are most appropriate for your questions or interests, I am happy to discuss the options with you.

I have posted some additional links to information about the structure and institutions of Canadian government on eClass. All cases and statutes that are referenced in the materials but are not in the textbook or supplements are freely available online through canlii.org.

Class Format

Our class time will be dedicated primarily to lectures, discussion, and ungraded problem-solving. I encourage you to ask questions, comment on the issues being discussed, offer examples, and so on throughout class. I will assume that you have reviewed the materials in advance of each class. All class sessions are intended to examine, synthesize, clarify, critique, and expand on the course materials. Reading carefully and critically are important skills for all jurists and this course is aimed at helping you cultivate skills of close and nuanced reading.

For most classes, I will post an outline of the lecture (in Word and PDF formats) on eClass beforehand. These outlines aim to help you structure your own notetaking during each class and to see one approach to synthesizing the material. Many students use these outlines as the basis for their class notes, adding more detail during class.

Many classes will involve ungraded problem-solving and/or multiple choice exercises to help you assess your understanding of the material and build your skills of applying legal principles and doctrine.

Many classes over the year may also involve a guest speaker. Any material associated with these guests and the content of their presentations is examinable unless indicated otherwise.

Classroom climate and communication

The study of public and constitutional law forces us to confront many difficult questions and issues, including divisive social and political issues and issues with material but differing impacts on people's lives. I will strive to foster conditions in the classroom that allow for productive, deep, and rigorous reflection and that cultivate discussion that is open to, interested in, and respectful of diverse views. It is expected that each member of our class will be mindful of the likelihood, indeed the certainty, that members of our course have personal experience with the difficult issues that arise in the study of constitutional law. It is further expected that each member of our class will be mindful of their professional and collegial obligations to each other, and of the impact of their words and actions on others.

The success of this course depends on the engagement, participation, and contribution of us all. We have much to teach and learn from each other. You can expect me to be a fully engaged instructor. I have designed the course with the learning outcomes and your success in mind. I am committed to pursuing these goals throughout the term and beyond. Similarly, I expect each of you to engage in this course through, at a minimum, attendance, preparation, thoughtful reflection, active listening, and constructive contribution. In addition, I expect that devices, when used in the classroom, will be used responsibly, only in ways that promote your learning, and not in any ways that detract from the learning or class experience of your colleagues. This includes an expectation that you will refrain from using cell phones or multitasking on devices during class. Engagement

will enhance your learning and the learning of your colleagues. I know that I will learn much from all of you as well.

Recording Policy and Course Delivery

Consistent with the Osgoode Recording Policy, our class will be recorded through the usual lecture recording process and available to all of you through the course website. It is a breach of the policy to distribute class recordings, as they are for your personal use during the term. **Please also note that you are not permitted to record our class without the professor's advance permission.**

Keep in mind that access to course content through recordings or any other provided technological avenues might fail sometimes, despite everyone's best efforts. Further, given the times, we know that the term may be disrupted and/or challenging for some or all of us because of health-related or other significant events, experiences, and pressures. I truly want the logistics of this course to be as frictionless as possible as you navigate the realities and various demands of your lives.

Accordingly, when attendance in person is not possible or advisable for the health, safety, and/or care of you or your loved ones, I will do my best to implement accommodations that are meaningful in the circumstances. I take it as my obligation to implement this accommodative structure. **I urge you not to come to class if you are experiencing symptoms of ill-health.** Doing so will not serve your own health or the health of the other members of our course. Further, there are most certainly those in the class who have significant health vulnerabilities or who care for those who are vulnerable. I trust that we are all making the decisions that are best and/or necessary for us and our loved ones, and there will be no penalty for occasional absences for these reasons.

Mindful of this, if I conclude that it is unsafe, impossible, or inadvisable for me to teach in-person during our scheduled class time, I will either hold class via Zoom during the regularly scheduled time or schedule a make-up class (in-person and/or online). As always, I will give you as much notice of such changes or disruptions as is possible in the situation. Needs for make-up classes that are known before the start of the term are clearly indicated on the Schedule & Reading List, listed on eClass, and announced in class.

In addition, there might be times throughout the course when it is pedagogically advantageous or advisable to hold class online. These will be noted on our class schedule and our class website.

Whenever we are meeting in person, our class will meet in Room 2001 (subject to exceptional or institutional circumstances). Whenever our class is held online during regular class time, our classroom will still be available to you.

Contact outside of class time

I encourage you to raise questions and reflections about the course material during class, as we work through the issues and problems of constitutional law together. I am also happy to meet with you outside of class time to discuss aspects of this course. Please use the link on our eClass site to book a meeting. I also arrive to class early on most days, I am available then, during class breaks, or immediately after class.

I welcome the chance to discuss your thoughts on public and constitutional law issues throughout the year and going forward. Usually, answering questions and working through issues will be more fruitful through discussion. Unless circumstances require otherwise, questions submitted by email are welcome but will often be answered in class, where appropriate (without identifying you), or in a one-on-one discussion. **When you send a question by email, please offer some context (this can help me craft the most meaningful response) and indicate what steps you have already taken to try to answer the question on your own.**

Dean's Fellows

As noted on the first page of this Syllabus, the Dean's Fellows for this course are Sam Herbert and Reem Salloum.

Reem and Sam are exceptional Osgoode students and I'm so delighted that you will have them as resources for this course. As you likely have already heard, Dean's Fellows are not TAs and are not responsible for teaching or reviewing any of the substantive material of this course. Rather, the role of Dean's Fellows in this course is to offer peer mentoring and academic support. They will aim to help you develop skills and strategies for learning in Public and Constitutional Law and preparing for assessments, in particular the December and April exams. The Dean's Fellows' role is to support your development of core learning, studying, and writing skills. It is not the role of Dean's Fellows to teach, clarify, summarize, or comment on the substantive material we cover in class. Questions about substantive material should always be directed to me rather than the Dean's Fellows.

If you have questions about the course or aspects of law school, you are also welcome to raise them with Sam and Reem. In addition, they will be holding at least one Dean's Fellows session in each semester, and they are available (within reason) to answer the questions about study skills/learning approaches that you send their way. The details of the Dean's Fellows sessions will be posted on the course website and announced in class.

Assessment

Like all parts of this course, the assessments in this course reflect the learning objectives set out above. **More detail about each assessment is set out in Appendix B and will be discussed in class.**

In general, the assessments, including the feedback process, aim to help you develop your legal knowledge and understanding; skills of careful reading, legal reasoning, and communication; and independent thought and judgment in the study of public and constitutional law. They are designed and graded with these aims in mind. As always, I am happy to discuss these assessments, their objectives, and their grading with you.

In this course, you will be assessed according to your work on three or four items:

1. Fall assignment (October) (15%)
2. December exam (30%)
3. Optional assessment (25%)
4. April exam (55% or 30%)

With respect to assessments, please note:

- If you are directly quoting or paraphrasing me from a lecture or discussion (on matters of opinion, not fact), please cite “KB Lecture on [fill in the blank]” (exact date not required on an exam). Please note that on assessments that are marked anonymously (Fall assignment and exams), you must take care not to reveal your identity through references to individual discussions we may have had.
- As set out in the “Osgoode Guidelines on use of Collaborative Study Materials in Examinations”, the work you submit for assessment, whether on an exam or an assignment, must represent your individual work. Thus, in the words of the Guidelines, “while collaborative study materials may be used as a learning/study aid, the answers you give in your examination [or assignments] must be your own and should be expressed *in your own original words*”. Any work submitted for assessment cannot be written collaboratively (at any stage) with colleagues, other people, or generative AI.

Policy for Late Submission of Assignments and Exams

All deadlines set out in this syllabus are firm, unless an extension, deferral, or other arrangement has been approved by me, the Assistant Dean (Students), or the Academic Accommodations Coordinator, depending on the circumstances. Without an advance arrangement, missed deadlines may result in the following penalties:

- **Fall assignment:** 2 marks for each 24-hour period (or part thereof) the assignment is late.
- **December exam:** 3 marks for each 30-minute period (or part thereof) the exam is late.
- **Optional assessment:** Students who arrive late for their scheduled meeting cannot make up the missed time. Their meeting will be held for the time remaining in their

time slot and their grade may be affected accordingly. Students who do not attend their scheduled meeting without advance arrangement or accommodation are subject to application of a penalty of 2.5 marks for each 24-hour period (or part thereof) between the time of the scheduled meeting and the time of the rescheduled meeting.

- **April exam:** 3 marks for each 30-minute period (or part thereof) the exam is late.

Policy for Assignments that Breach the Word/Time Requirements

The instructions for both the Fall assignment and some versions of the Optional work set parameters for the length of your submission (in terms of a word count or a time restriction, depending on the option you choose). These requirements are firm. Assignments that breach the length requirement will result in the following penalties:

- **Fall assignment:** At least 1 mark and up to 7.5 marks, depending on the extent of the breach.
- **Optional work:** At least 1 mark and up to 12.5 marks, depending on the extent of the breach.

Feedback

My feedback to you: I am committed to providing timely and constructive feedback regarding your performance in this course. My feedback will always be aimed at supporting and enhancing your learning and success. All your assessments will be returned to you with feedback that is intended to be constructive and of assistance in subsequent work. You will receive feedback on your Fall assignment in advance of the December exam and you will receive feedback on your December exams early in the Winter Term. I am also available to discuss your work throughout the year during my office hours or by appointment.

In particular with respect to the exams, after the December exams are returned and after final grades are released, I am happy to meet with you if you have any questions about your exam or grade or want to discuss your exam or grade further. After the exams are returned and after final grades are released, you are welcome to book a meeting using the online scheduler. When you schedule your meeting, you will be required to confirm that you have already reviewed the exam questions, your exam answer, the feedback written on your exam, and the “feedback memo” that I circulate to the entire class with comments on the exam.

Your feedback to me: Your feedback about this course is invaluable and I encourage you to share your views with me. You can provide feedback on the course at any time in person, by email, by completing the anonymous feedback form posted on eClass, and/or by completing a formal course

evaluation during the University's evaluation period. I strongly encourage you to complete the formal course evaluations during the University's evaluation period – it is extremely valuable for many reasons. However, I note that this feedback is not provided to me until after the course is complete and so, any comments made will not improve the course while you are in it. Accordingly, feedback during the course is of particular use as well.

I expect that we will all take seriously our responsibility to provide feedback. Just as my feedback and assessment of you have real consequences, so too does your feedback and assessment of me. Accordingly, you can be assured that my feedback to you will be fair, honest, constructive, respectful, and aimed at enhancing your success; I expect the same of your feedback to me.

Instructor's Policy on the Use of AI

Developing a policy on the use of content-generating AI (GenAI) is now a necessity for universities and course instructors. The relevance and benefits, along with the dangers and limits, of GenAI for education – and for the legal profession – are undeniable. You will each have your own relationship and familiarity with AI tools, including GenAI, in your life and in your approach to your legal education. No doubt, that relationship and familiarity are changing in real time.

These realities inform the development of this policy. In this course, I hope you will all develop an approach to learning that best serves you. This will likely take some time and careful attention at the outset and will be adjusted over time. There will certainly be trial and error involved. To the extent that AI plays a positive role in your approach to learning in this course and in law school more broadly, I encourage its use.

At the same time, I hope this course will help all of you to not only build your knowledge of the fundamentals of public and constitutional law, but also develop your skills of independent judgment, legal reasoning, critical analysis, careful reading, and persuasive communication and advocacy. Further, I hope this course will help you develop your own ideas, positions, and comments on matters relating to public and constitutional law. These are foundational skills for legal professionals, who must be able to deploy these skills in practice and who must have the expertise and judgment needed to distinguish between accurate/reliable/valuable content generated by AI and that which is inaccurate/unreliable/weak/hallucinated/improperly referenced/etc. To the extent that your use of AI tools undermines any of the learning objectives or pedagogical aims of our course, it is detrimental to your learning and I encourage you to revise your approach.

Regardless of how you use AI in your learning in this course, **submitting text or any other materials that are created, revised, inspired by and/or generated through the use of GenAI at any stage for any assessment is prohibited.** As set out in section 5.2.a.x. of the York Senate Academic Conduct Policy and Procedures, you are permitted to use tools like spellcheck and grammar check to correct text that you have written yourself, as long as that does not “go[] beyond the correction of grammar, idiom, punctuation, spelling and sentence mechanics”. But again, no content that flows

from any use of GenAI can be submitted for the purposes of an assessment. In this context, “text or any other materials that are created, revised, inspired by and/or generated through the use of GenAI at any stage” and “content that flows from any use of GenAI” include (but are not limited to) work for which you produced an original draft that was then edited, revised, or commented on by GenAI; work for which you revised or edited an original draft produced by GenAI; and work for which GenAI was used to develop any aspect of the ideas, arguments, structure, or content.

For additional guidance, based on situations and specific questions from past years, the following practices are prohibited under this policy:

- Submitting a podcast for the optional work in which any part of the script or any of the words spoken were generated, edited, modified, inspired, or produced by GenAI. If any of the ideas, points, arguments, and/or commentary were produced, generated, illuminated, elaborated and/or inspired by GenAI, this must be fully accounted for and described in full in your research log and bibliography.
- Reproducing material from a summary on an exam or assignment, when that summary material was generated, supplemented, revised, created, or produced, at any point, using GenAI.

Further, I draw your attention to the York Senate Academic Conduct Policy and Procedures sections on cheating and plagiarism. Some relevant provisions of the Policy and Procedures are discussed in the next section. Here, I emphasize that it is a breach of the York Policy to pass off as your own any work (including text, ideas, positions, arguments, etc) that are not your own. This is true regardless of the source of the work. Thus, it is a breach of the Policy to pass off as your own any work generated through AI. To the extent that AI is the source of information on which you rely in an assessment in this course, you must appropriately document and reference that use of AI. This documentation must include the tool and prompts used, along with the date on which the information was generated. Keep in mind as well that originality, critical thinking, independent judgment, and nuanced understanding of the law are some of the most valuable skills for a lawyer in these times. They are also often criteria used in evaluating assessments. Accordingly, the use of GenAI to write, revise, provide a starting point, and otherwise produce or scaffold your written work will undermine your learning and the quality of your work.

If you have any concerns, questions, or comments about this policy, please do not hesitate to reach out to me. Further, as you develop your approach to learning in this course and in law school generally, I would certainly be interested to learn if and how GenAI fits into your approach. As policies such as these are in their infancy, learning more about how students use GenAI – and how it is not useful – is of great interest and use.

Osgoode and York University Academic Policies

This section is required by Osgoode Hall Law School to be in every course outline. Students are expected to have read the whole section.

a. Academic Honesty and Integrity:

Osgoode students are required to maintain high standards of academic integrity and are subject to the **York Senate Academic Conduct Policy and Procedures** and the relevant [Osgoode Academic Rules](#). Further information is available on the [York Academic Integrity](#) site.

The Senate Policy and Osgoode Academic Rules are also available via the *JD Students* part of the MyOsgoode website, proceeding through the “Student Handbooks” button, then “JD Academic Handbook”, and the finally the “Academic Rules” link.

Special attention is drawn to the following three matters related to reliance on external persons, works, and/or technologies:

1) Unauthorized use of collaborative study materials

The provisions of the York Senate Policy on Academic Honesty on unauthorized collaboration have been supplemented by Osgoode’s “[Guidelines on use of Collaborative Study Materials in Examinations](#)”, found [HERE](#). Students are strongly advised to read the Guidelines closely; knowledge of them will be assumed. Note a key bottom-line is that use of collaborative study materials in the ways and contexts set out in the Guidelines is prohibited unless explicitly permission by the instructor and, then, only to the extent of that authorization.

2) Assistance from content-generating artificial intelligence (GenAI) and/or AI prohibited by the instructor

The Academic Conduct Policy and Procedures contain rules on use of GenAI and AI more generally. Some key provisions are reproduced below to ensure no student is unaware of them:

Section 5.2.a.i., ii. & x:

Cheating – the attempt to gain an unfair advantage in an academic evaluation. Forms of cheating include but are not limited to:

- i. Using an undocumented or unreferenced content generator, including the use of text-, image-, code-, or video-generating artificial intelligence (AI);
- ii. Obtaining assistance by means of documentary, artificial intelligence technology, electronic or other aids that are restricted by the instructor (see Section 6.2.c);
- ...
- x. Submitting work prepared in collaboration with a third party when collaborative work on an assessment has not been authorized by the instructor/supervisor, and goes beyond correction of grammar, idiom, punctuation, spelling and sentence mechanics;

For the sake of caution “third party” in section 5.2.a.x. should be read to include use of tools like Word’s spelling and grammar feature, Grammarly, and so on. Such tools are fine to use but they cannot “go beyond correction” any more than a human third party’s assistance could. Because this provision is structured as prohibited-unless-authorized, students may not use such tools to essentially re-write drafts (if and when some tools develop such capacities) unless the instructor has enunciated a general course policy allowing such use.

Section 4:

Undocumented/Unreferenced: refers to undocumented and/or unreferenced quotes, passages, sources, and other missing or improper citation of work submitted for evaluation.

Section 6.2. & 3:

It is the responsibility of **students** to:

...

c. follow their instructors’ expectations for using text-, image-, code-, or video-generating artificial intelligence (AI); referencing sources; group work and collaboration, and be proactive in pursuit of clarification and resources to support these expectations;

...

It is the responsibility of **course directors and graduate supervisors** to:

b. communicate with and support students in following instructors’ expectations for *using text-, image-, code-, or video-generating AI*; referencing sources; conducting group work and collaboration;

3) Plagiarism, unattributed paraphrasing and connections to improper use of AI

The York Senate Academic Conduct Policy and Procedures prohibit plagiarism in section 5.2.b.:

Plagiarism – the appropriation of the work of another whether published, unpublished or posted electronically, attributed or anonymous, without proper acknowledgement. This includes but is not limited to:

- i. Presenting all or part of another person’s work or ideas as something one has produced where work includes, but is not restricted to, text, code, technical and creative production, paragraph and essay structure and organization, and other forms that constitute intellectual property;
- ii. Paraphrasing another’s writing without proper citation;
- iii. Representing another’s artistic, technical work or creation as one’s own;
- iv. Reproducing without citation the student’s own work originally presented elsewhere; and
- v. Failing to attribute sources, or failure to attribute sources properly.

Apart from section 5.2.b.i.'s relevance to use of AI (in terms of how AI can lead to “presenting ...another person’s work or ideas as something one has produced”), students are especially urged to understand that paraphrasing without proper citation is plagiarism. There has always been a concern that some students do not sufficiently understand the need to cite to sources of paraphrases no less than directly quoted work. This problem may be growing. Of late, this is manifesting itself in students using extensive paraphrases, sometimes that go on for pages, but only citing to the source at or near the start or at or near the end – and sometimes sprinkling in a reference or two in between.

Apart from such extensive paraphrasing not being exemplary work, the moment a reader cannot know whether a given idea or thought is connected to a citation (because the citation is so distant from it) is the moment such paraphrasing also constitutes the academic offence of plagiarism for failure to properly attribute. Students are urged to take great care here, especially since there are reasons to worry that even instructor-authorized use of an AI tool can lead students to start producing substantial paraphrases of AI-generated text. Again, however poor such use of AI would be, it also comes with the risk of plagiarism if the student has not properly referenced the AI tool and any question(s) used to prompt the AI tool’s answers, and/or has not documented by retaining the text of both the questions (and follow-up prompts) and the answers given by AI. Thus, section 5.2.a.i. cheating by use unreferenced and/or undocumented AI content generation can intersect with section 5.2.b. plagiarism.

b. Religious Observance:

York University is committed to respecting the religious beliefs and practices of all members of the community, and making accommodations for observances of special significance to adherents. Should any of the dates relating to examinations or assignments for this course pose such a conflict for you, please let Assistant Dean, Students, Mya Rimón know within the first three weeks of class.

c. Students with Disabilities and Accommodation Needs:

York University has a range of resources to assist students with physical, mental, and learning disabilities/challenges in achieving their educational objectives. Students with disabilities requiring accommodation in the classroom or in the examination or evaluation process are encouraged to identify themselves to [York’s Student Accessibility Services](#) office or Osgoode’s Office of Admissions & Student Services as soon as possible.

Students seeking accommodation in experiential education settings are encouraged to read the “Accommodation Information for Clinical & Intensive Program” handout provided to them with their enrolment offer. All requests for accommodation will be kept confidential.

Requests for accommodation for in-term work must be made, in writing, to either the instructor or to the Academic Accommodations Coordinator, Nicole Casey. Such requests must be made as soon as the need for accommodation arises and, barring exceptional circumstances, in advance of the deadline for the work.

Requests for accommodation for final examinations and final papers may only be made to and approved by the Assistant Dean, Students, Mya Rimon and must be made in advance of the examination date or final paper due date.

d. Other York University Policies, including Ethics Review Process:

Further information concerning relevant York University academic policies, such as the Ethics Review Process for research involving human participants is available online via the [University Secretariat](#).

5. POLICIES REGARDING STREAMING AND RECORDING FOR IN-PERSON, REMOTE, AND HYFLEX (DUAL-DELIVERY) TEACHING AND LEARNING

a. Remote and Hyflex classes:

In 2026-27, a handful of courses are being delivered fully remotely (i.e., using Zoom), partly remotely (blending in-person classes for the majority of the class with less frequent online classes or modules) or by Hyflex (dual-delivery). The Hyflex mode of delivery involves some students joining class in real-time from an online connection while the rest of the students are in-person in the physical classroom with the instructor.

Note, however, that instructors of all in-person courses have the discretion for pedagogical reasons to run some classes in a way that has students attending online, whether everyone is online including the instructor (fully remote on Zoom) or whether some are online with the instructor in the physical classroom with other students (Hyflex). The number of such classes is limited by Osgoode's definition of an in-person course as being a course that is predominantly and essentially in person.

b. Modes of Delivery, Streaming, and Recording:

With respect to lecture classes in "courses" (as opposed to "seminars"), class sessions must be recorded – whatever mode in which they are being taught – in order to be in compliance with Osgoode's recording policy for lecture courses. For regular in-person lecture sessions, that means recording from the computer console at the front of the class of both the instructor's voice and the screen display using a platform called Panopto. If a given lecture class session is done in a synchronous remote mode (Zoom) or a Hyflex mode, it too must be recorded under Osgoode's recording policy.

Then, for any of these modes, it is left to the pedagogical judgment of the instructor as to whether the recording will be posted on eClass for all students in the course to access. Where an instructor

decides not to make the recording of their lecture class available to all students in the class (as they are permitted to decide), the recording must nonetheless be made available to any student who has an accommodation that requires access to the recording.

As for seminars, there is no duty to record seminar sessions under Osgoode's policy but an instructor may record a class session (or indeed the whole course) if they wish. If they decide to, it is further in their discretion as whether to post the recording to the eClass site. As well, the above-mentioned discretion to have some classes that are not fully in-person – e.g., that are fully remote on Zoom or optionally remote for students via Hyflex – also comes with a discretion (but no duty) to record and upload.

c. Consent and Protections:

Whether in lecture classes of a course or in a seminar, activities for any class delivered synchronously online and any class delivered by Hyflex's dual-delivery method involve live streaming. They may also, and usually do, involve recording. They may further involve storing the recording online in order to make the recording available to the class, after the class has ended, on the eClass platform.

Images, audio, text/chat messaging that have been recorded may be used and/or made available by the University to students enrolled in the course and those supporting the course for the purpose of materials review, for assessment, etc. Recordings will be managed according to the University's Common Record Schedule and will be securely destroyed when no longer needed by the University. Your personal information is protected in accordance with York's [Policy on Access of Information and Protection of Privacy](#) and the [Freedom of Information and Protection of Privacy Act](#).

The University will use reasonable means to protect the security and confidentiality of the recorded information, but cannot provide a guarantee of such due to factors beyond the University's control, such as recordings being forwarded, copied, intercepted, circulated, disclosed, or stored without the University's knowledge or permission, or the introduction of malware into computer system which could potentially damage or disrupt the computer, networks, and security settings. The University is not responsible for connectivity/technical difficulties or loss of data associated with your hardware, software, or Internet connection.

By engaging in course activities that involve recording, you are consenting to the use of your appearance, image, text/chat messaging, and voice and/or likeness in the manner and under the conditions specified herein.

In the case of a live stream recording during a remote class, if you choose not to have your image or audio recorded, you may disable the audio and video functionality. In the case of a live stream recording in a Hyflex (dual-delivery) class in which some students are in-person with the instructor and some students remote online, if you choose not to have your image or audio recorded, you

may opt to attend the Hyflex class from the remote end, at which point you can disable the audio and video functionality.

In each such choice situation, the power to choose should be exercised against a background understanding that disabled audio and video can seriously affect the interactive dynamics of a class environment and the collective benefits of such interaction. Accordingly, if an instructor requests students not to turn off their cameras, students should not understand this as an order but as a considered preference based on serious reflection on pedagogy. You may still exercise your choice but are requested not to do so if turning off video or audio is more a matter of convenience than of principled objection to being seen or heard in a class.

d. Duties:

You are not permitted to disclose the link to/URL of an event or an event session recording to anyone, for any reason. Recordings are available only to authorized individuals who have been directly provided the above instructions/link for their use. Recordings for personal use, required to facilitate your learning and preparation of personal course/lecture notes, should not be made without the permission of the instructor or event coordinator and, further, should not be shared with others without the further permission of the instructor or event coordinator.

APPENDIX A: Course Topics

This is a survey course that aims to introduce you to the fundamentals of Canadian public and constitutional law. Given the history of, perspectives on, cases about, and impacts of constitutional issues, it would be possible to spend all year on any one of these topics. Of course, we won't do this. Instead, I hope this course provides you with the knowledge and skills you need to understand and assess a wide spectrum of public and constitutional law issues, including constitutional issues that arise in your other 1L courses and that you can pursue further in upper year courses.

Below is a list of the topics I expect we will cover this year. This list is subject to change in light of developments in the law, current events, students' interests, and our pace. The authoritative list of our coverage and the relevant materials are set out in the "Class Schedule & Reading List", posted on eClass, and reflected in the organization of our eClass site.

A. SOURCES, FOUNDATIONS, AND INSTITUTIONS OF PUBLIC & CONSTITUTIONAL LAW

1. Introduction to Public & Constitutional Law
2. Sources and Institutions of Public Law and the Constitution
3. Principles and Architecture of the Constitution
 - (a) Unwritten constitutional principles
 - (b) The architecture of the constitution
 - (c) Constitutional amendment
 - (d) The judiciary
 - (e) The administrative state

B. MODERN FEDERALISM & THE DIVISION OF LEGISLATIVE POWERS

4. Introduction to the Division of Legislative Powers
5. Federalism Doctrines
 - (a) Validity of Legislation
 - (b) Operability of Legislation
 - (c) Applicability of Legislation
6. Peace, Order, and Good Government
7. Criminal Law, Morality, and Public Order

C. INDIGENOUS PEOPLES & CONSTITUTIONALISM IN CANADA

8. Introduction to Indigenous Peoples & Constitutionalism in Canada
9. Section 91(24)
10. Indigenous Constitutionalism
11. Common Law Foundations of Constitutional Recognition
12. The Constitutional Entrenchment of Aboriginal Rights
13. Aboriginal Title
14. Treaty Rights
15. The Duty to Consult
16. Self-Government

D. THE CANADIAN CHARTER OF RIGHTS AND FREEDOMS

17. Introduction to the Charter
18. The Framework of the Charter (including ss 1, 33, 52, 24)
19. Application of the Charter
20. Freedom of Religion and Conscience
21. Equality & Non-discrimination
22. Life, Liberty, and Security of the Person

APPENDIX B: Additional details about assessments

1. Fall assignment (15%)

- **RELEASE OF ASSIGNMENT:** October 5th at 8:30 am (through eClass announcement)
- **DUE DATE:** October 9thth at 9:30 am
- **HOW TO SUBMIT:** Online Osgoode dropbox
- **WORD LIMIT:** 1000 words
- **TIME LIMIT** (for students who submit an audio version): 8 minutes
- **ASSIGNMENT NUMBER:** This assignment is marked on an anonymous basis. **USE ASSIGNMENT NUMBER 'A#'**
- **NATURE OF ASSIGNMENT:** For this assignment, you will provide feedback on the work of a fictional student whose submission was generated by GenAI. Your feedback should comment on the strengths and weaknesses of the answer. The comments should address the accuracy of the law, the quality of the reasoning, and the structure of the answer. When you identify an error or weakness in the answer, you are expected to correct the error or offer specific comments on how to strengthen the identified weakness. More detailed instructions for the assignment will be posted on eClass in September and will be discussed in class in October.
- **EVALUATION CRITERIA:** See Marking Rubric posted on eClass.
- **LATE SUBMISSIONS (without advance arrangement):** are subject to application of a penalty of 2 marks for each 24-hour period (or part thereof) the assignment is late.
- **SUBMISSIONS THAT EXCEED THE WORD or TIME LIMIT:** are subject to application of a penalty of at least 1 mark and up to 7.5 marks, depending on the instructor's assessment of the extent of the breach.

2. December exam (30%):

- **DATE OF EXAM:** November 30, 2026
- **DURATION:** 3 hours, 15 minutes
- **SCOPE:** All material covered in the reading list and in class is examinable unless I indicate otherwise.
- **ACCESS TO MATERIALS DURING THE EXAM:** The exam will be open book and written in-person. The exam software does not allow you to access the internet or any other digital materials on your computer while you are writing the exam. Any materials that you wish to access or rely on during the exam must be brought with you into the exam room.

- **EXAM NUMBER:** Marked on an anonymous basis, use **Exam Number 'F#'**
- **FORMAT:** The exam will include multiple choice questions, as well as questions requiring you to identify and analyze public and constitutional law issues that arise in a set of hypothetical facts.
- **RELEASE OF INSTRUCTIONS & FACT PATTERN:** The instruction pages for the exam and some portion of the exam content (that is, some portion of the reading on the exam – NOT the exam questions) will be provided in advance of the exam.
- **EXAM REVIEW:** We will have an optional exam review session on November 26th from 10:30 am to 12:30 pm. Leading up to the exam, I will also make additional meeting times available.
- **LATE SUBMISSIONS (without advance arrangements):** are subject to application of a penalty of 3 marks for each 30-minute period (or part thereof) the exam is late.

3. Optional Assessment (25%):

- This optional assessment involves a 20-25 minute conversation with me about issues of public and constitutional law that we cover in the winter term and/or that are of particular interest to you. If you complete the optional assignment, the weighted value of your April exam will be 30% rather than 55%.
- **TIMING:** These conversations will take place during the weeks of March 8th and March 15th. You will have the opportunity to sign up for an available time slot during that week.
- **HOW TO OPT IN:** If you will be completing the optional assignment, you must send me an email confirming your intention to do so by **February 12, 2027 at 11:59 pm**. The decision that is in place at this deadline is firm, subject to extenuating circumstances or formal accommodation.
 - o When you opt in, you must indicate whether you would like our conversation to deal with (a) a segment of our winter term material or (b) a specific development or event in public and/or constitutional law that happened between 2024-2027 or is still ongoing.
 - o The development or event could be the release of a judicial decision; the announcement of a government policy; the introduction of a bill or the passing of a statute; a debate on an issue related to public law; the publication of a new article or book on a public law topic; a significant event or set of events engaging public law; a new TV show, movie, documentary, or podcast that raises issues related to public or constitutional law; the release of new technology that raises constitutional law questions; or some other similar issue. It should, in some way, touch on matters related to Winter Term material. With option (b), you must describe the specific development or event that you wish to discuss and your

proposed topic must be approved by me. I am happy to brainstorm or discuss possible topics in advance of you opting-in.

- **LATE POLICY:**

- Students who arrive late for their scheduled meeting cannot make up the missed time. Their meeting will be held for the time remaining in their time slot and their grade may be affected accordingly.
- Students who do not attend their scheduled meeting without advance arrangement or accommodation are subject to application of a penalty of 2.5 marks for each 24-hour period (or part thereof) between the time of the scheduled meeting and the time of the rescheduled meeting.
- More detailed instructions and parameters for the optional assessment, along with the marking rubric, will be posted on eClass at the start of the Winter Term.

4. **Final exam (55% or 30%) (marked anonymously):**

- **DATE OF EXAM:** April 8, 2027
- **DURATION:** 3 hours, 15 minutes
- **SCOPE:** All material covered in the reading list and in class during the Winter Term is examinable unless I indicate otherwise.
- **ACCESS TO MATERIALS DURING THE EXAM:** The exam will be open book and written in-person. The exam software does not allow you to access the internet or any other digital materials on your computer while you are writing the exam. Any materials that you wish to access or rely on during the exam must be brought with you into the exam room.
- **EXAM NUMBER:** Marked on an anonymous basis, use **Exam Number 'W#'**
- **FORMAT:** The exam will include multiple choice questions, as well as questions requiring you to identify and analyze public and constitutional law issues that arise in a set of hypothetical facts.
- **RELEASE OF INSTRUCTIONS & FACT PATTERN:** The instruction pages for the exam and some portion of the exam content (that is, some portion of the reading on the exam – NOT the exam questions) will be provided in advance.
- **EXAM REVIEW:** We will have an exam review session on April 1st from 10:30 am to 12:30 pm. Leading up to the exam, I will also make additional meeting times available through the online scheduler.
- **LATE SUBMISSIONS (without advance arrangements):** are subject to application of a penalty of 3 marks for each 30-minute period (or part thereof) the exam is late.